

# Prasant Kumar Gupta v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 1 April 2024 · 2024:AHC:54944-DB · Writ-C No. 6928 of 2024  
· **Petition disposed; impugned recovery withdrawn; fresh order to follow the Code.**

## HEADNOTE

A final assessment of electricity-theft dues dated 15.04.2023, made before expiry of the fifteen days in clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005, and on a provisional assessment whose date for appearance was left blank, was procedurally irregular. The licensee withdrew the impugned recovery and stated that a fresh order would be passed after following the Code. The writ was disposed of in terms of that statement.

## FACTUAL SUMMARY

Prasant Kumar Gupta was served on 11 April 2023 with a provisional assessment dated 10 April 2023 in an alleged electricity-theft case. The date for his appearance was left blank, and a final assessment order followed on 15 April 2023. Recovery proceedings were then started against him. He filed Writ-C No. 6928 of 2024 in the Allahabad High Court challenging the recovery and the final assessment. On 4 March 2024 the writ was connected with another pending assessment matter.

## REUSABLE CONSTRUCTIONS

1. A final assessment under clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005, made before the fifteen-day period expires, or without a date for the consumer to appear, is procedurally irregular and will not sustain recovery. ¶ 1-2 (4 March 2024); 2-3 (1 April 2024)

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::8.1(b)(iii)

fifteen-day opportunity before final assessment in a theft case

#### HOLDING

The final assessment dated 15.04.2023 was made before expiry of the fifteen days provided by clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005, and the provisional assessment served on 11.04.2023 left the date for appearance blank. That was a procedural irregularity. The licensee withdrew the impugned recovery and is to pass a fresh order after following the procedure prescribed by the Code. The writ was disposed of in terms of that statement. ¶ 1-2 (4 March 2024); 2-3 (1 April 2024)

## PRINCIPLE TAGS

**UP-2005::8.1(b)(iii)** The Court treated the 15.04.2023 final assessment, made before fifteen days from service of the provisional assessment and with the appearance date left blank, as contrary to clause 8.1(b)(iii). Recovery on it was withdrawn, and a fresh order is to follow the Code. ¶ 1-2 (4 March 2024); 2-3 (1 April 2024)

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS ESTABLISHED, AND THE QUANTUM OF ANY LAWFUL ASSESSMENT

Left to a fresh order after the procedure in the Supply Code. The writ was disposed on the licensee's statement that the impugned recovery stood withdrawn. ¶ 2-3 (1 April 2024)

